

26TRCV01089 26TRCV01089

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Motion to Compel Arbitration

Moving Party: Defendant American Honda Motor Co., Inc.

Responding Party: Plaintiff No Name Given Sagar

RULING

The court considered the moving papers, opposition, and reply. Honda's Motion to Compel Arbitration is DENIED.

PROCEDURAL BACKGROUND

On March 25, 2026, Plaintiff No Name Given Sagar ("Plaintiff") filed a complaint against Defendants American Honda Motor Co., Inc. ("Honda") and DOES 1 through 20, inclusive, alleging three causes of action for: (1) Breach of Express Warranty Under the Song-Beverly Consumer Warranty Act; (2) Breach of Implied Warranty Under the Song-Beverly Consumer Warranty Act; and (3) Violation of the Song-Beverly Act Section 1793.2(b).

On May 11, 2026, Honda filed the instant motion. On June 18, 2026, Plaintiff filed an opposition. On June 25, 2026, Honda filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on June 8, 2025, Plaintiff purchased a new 2025 Honda CR-V (the "Subject Vehicle"). (Complaint, ¶ 6.) Plaintiff alleges that in connection with his purchase of the Subject Vehicle, he received written warranties from Honda. (Complaint, ¶ 7.) Plaintiff alleges that the Subject Vehicle was delivered to him with serious defects and nonconformities to warranty and developed additional defects and nonconformities to warranty. (Complaint, ¶ 9.) Plaintiff alleges that he has delivered the Subject Vehicle to Honda's authorized repair facilities on numerous occasions, but Honda has failed to conform the Subject Vehicle to the applicable warranties. (Complaint, ¶¶ 17-18.)

LEGAL STANDARD

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc. Section 1281.2.) California law favors enforcement of valid arbitration agreements. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-357.)

The Federal Arbitration Act ("FAA") applies to any contract evidencing a transaction involving interstate commerce which contains an arbitration clause. (*Wolls v. Superior Court* (2005) 127 Cal.App.4th 197, 211.) Section 2 of the FAA provides that arbitration provisions shall be enforced, save upon grounds as exist at law or in equity for the revocation of any contract. (*Ibid.*) A state court may refuse to enforce an arbitration clause on the basis of generally applicable contract defenses, such as fraud, duress, or unconscionability. (*Ibid.*) A state court, however, may not defeat an arbitration clause by applying state laws applicable only to arbitration provisions. (*Ibid.*)

For the FAA to apply, a contract must involve interstate commerce. (*Ibid.*) When it applies, the FAA preempts any state law rule that stands as an obstacle to the accomplishment of the FAA's objectives. (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 238.) A party asserting FAA preemption bears the burden to present evidence establishing a contract with the arbitration provision affects interstate commerce, and the failure to do so renders the FAA inapplicable. (*Ibid.*) Evidence must be presented, in the form of declarations or other evidence, that establishes that the contract affects interstate commerce. (*Ibid.*) "[S]ince arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement." (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963.)

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) the right to compel arbitration has been waived by the petitioner; or (b) grounds exist for the revocation of the agreement." (Code Civ. Proc. Section 1281.2(a-b).) Thus, in assessing a motion to compel arbitration, the moving party "bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the [motion] bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284, citation omitted.)

"If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc. Section 1281.4.)

DISCUSSION

Moving Party's Argument

Honda argues that Plaintiff agreed to arbitrate all claims against Honda because the limited warranty provided to Plaintiff by Honda in connection with his purchase of the Subject Vehicle (the "Warranty Booklet") contains an arbitration provision. Honda also argues that Plaintiff entered into a Retail Installment Sale Contract (the "RISC") with a vehicle dealer which also contained an arbitration provision. Honda argues that equitable estoppel applies because the parties' arbitration agreement is part of the same warranty contract upon which Plaintiff's claims are based. Honda argues that the parties' arbitration agreement in the Warranty Booklet is not procedurally or substantively unconscionable because Plaintiff was given an opportunity to opt-out, the arbitration agreement is mutual, Honda has agreed to pay virtually all costs of arbitration, and the AAA rules are fair.

Opposing Party's Argument

Plaintiff argues that Honda cannot compel arbitration based on the RISC because Honda did not address the RISC in its notice of the instant motion, and that regardless, the California Supreme Court's decision in the Ford Motor Warranty Cases prevents a non-signatory vehicle manufacturer from compelling arbitration of Song-Beverly Act claims based on an arbitration provision in the vehicle dealer's sales contract. Plaintiff also argues that he is not fluent in English and thus there was no mutual assent to enter into an arbitration agreement. Plaintiff argues that equitable estoppel does not apply here because Plaintiff's claims do not arise solely out of the RISC or the Warranty Booklet.

Reply Argument

Honda argues that its motion is based on the Warranty Booklet, and thus Plaintiff improperly focuses his opposition on the arbitration provision contained in the RISC. Honda argues that Plaintiff has not denied that he received the warranty Booklet and has not claimed to have exercised his right to opt out of arbitration. As a result, Honda argues that Plaintiff has failed to meet his burden of challenging the existence of the parties' arbitration agreement. Honda argues that the fact that Plaintiff is not fluent in English does not relieve him from the obligations of the parties' arbitration agreement because Plaintiff has not argued that the contents of the Warranty Booklet were misrepresented or that he was prevented from reviewing it. Honda again clarifies that it seeks enforcement of the arbitration provision contained in the Warranty Booklet and does not seek to compel arbitration based on the RISC.

Merits of the Motion

A. Existence of a Valid Arbitration Agreement

The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code of Civ. Proc. Section 1281.2.) This is usually done by presenting a copy of the signed, written agreement to the court. "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.)

The Warranty

Here, Honda moves to compel arbitration on the grounds that Plaintiff assented to an arbitration provision found within Honda's Warranty Booklet for 2025 model year vehicles (the "Warranty Booklet"). In support of its motion, Honda offers the declaration of Honda's counsel, Michael J. Hurvitz. Attached to the Hurvitz Declaration as Exhibit B is a copy of the Warranty Booklet.

The Warranty Booklet contains an arbitration provision stating the following:

"You and we agree that any dispute arising out of or relating to any aspect of the relationship between you and Honda will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect on the date of delivery of your vehicle to you. This Agreement to Arbitrate includes all claims, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory; claims arising out of your warranty; claims arising before or after this Agreement, such as claims related to statements about our products; claims about the performance, design of our products, or manufacturing of our products; and claims that are currently the subject of purported class action litigation in which you are not a member of a certified class." (Hurvitz Decl., Exh. B, p. 7.)

However, the Warranty Booklet also contains an opt-out provision which states the following:

"You may opt out of arbitration within 30 days after the date of delivery of your vehicle to you by sending a letter to: Honda's Office of the General Counsel, 1919 Torrance Blvd., Mail Stop CHI-5, Torrance, CA 90501, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding." (Hurvitz Decl., Exh. B, p. 8.)

The Hurvitz Declaration is silent as to whether this opt-out provision was invoked by Plaintiff and whether there was any notice to Plaintiff of the existence of the Warranty Booklet or the arbitration provision therein. Without such evidence, Honda fails to meet its burden of showing that there is a valid arbitration agreement to which Plaintiff assented. Therefore, the court cannot compel arbitration under the terms of the Warranty Booklet.

Accordingly, Honda's Motion to Compel Arbitration is DENIED.

CONCLUSION

Based on the foregoing, Honda's Motion to Compel Arbitration is DENIED.

Moving party is ordered to give notice of the court's ruling.